

THE COUNTY OF POWYS
(COUNTY UNCLASSIFIED ROAD NO 139: RHIW CONSTABLE,
BLACK MOUNTAINS) (PROHIBITION OF DRIVING) ORDER 1990

THE COUNTY COUNCIL OF POWYS in exercise of its powers under Sections 1(1) and (2) and 2(1) and (2) of the Road Traffic Regulation Act 1984 and of all other enabling powers and after consultation with the Chief Officer of Police in accordance with Part III of Schedule 9 to the Act hereby makes the following Order:

1. Save as provided in Article 2 of this Order no person shall cause any vehicle with four or more wheels to proceed in that length of the County Unclassified Road number 139 in the Communities of Talgarth and the Vale of Grwyney which form part of the route known as Rhiw Constable extending from its junction with the County Classified Road number C80 and the County Unclassified Road number 141 near Penrhos, Llanelieu for a distance of approximately 3.4 miles (5.5 kilometres) in a generally south-easterly direction to a point adjacent to the dam wall of Grwyne Fawr Reservoir.

2. Nothing in Article 1 of this Order shall prevent any person from causing any vehicle with four or more wheels to proceed in the length of road specified in that Article if the vehicle is being used :

(a) by the owners of any land abutting the said length of road and by any other person with the consent of the said owner or owners to gain access to or egress from the said land or

(b) in connection with works being undertaken on in or adjacent to that length of road or

(c) by the fire brigade, police or ambulance services or by any statutory undertaker.

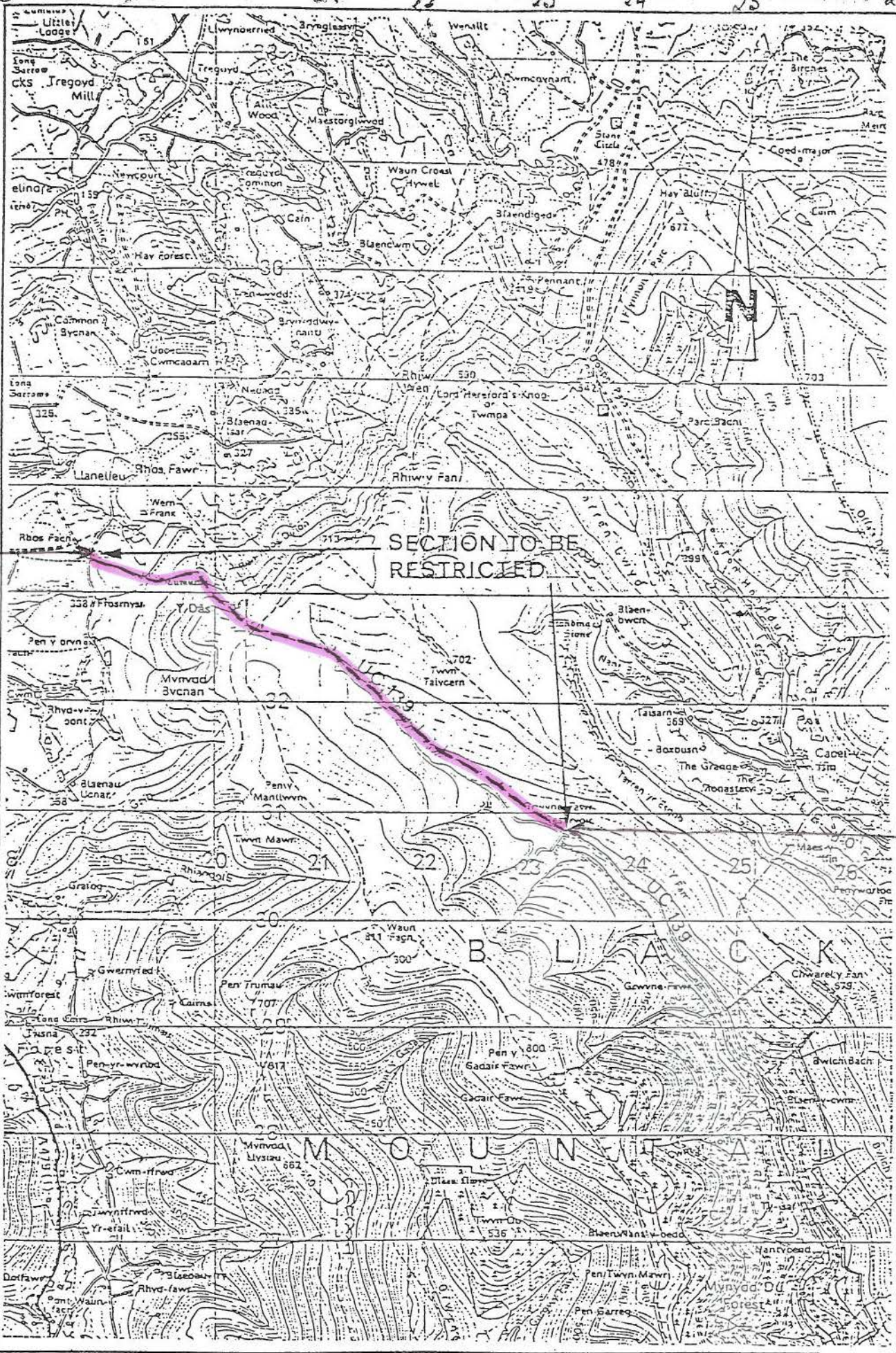
3. This Order shall come into operation on the third day of December One thousand nine hundred and ninety and may be cited as The County of Powys (County Unclassified Road no 139: Rhiw Constable, Black Mountains) (Prohibition of Driving) Order 1990.

GIVEN under the Common Seal of the County Council of Powys this twenty-second day of November One thousand nine hundred and ninety.



(THE COMMON SEAL of THE COUNTY
(COUNCIL OF POWYS was hereunto
(affixed in the presence of:-

County Solicitor



SECTION TO BE RESTRICTED

Dam wall -
(Grogne Fawr Reservoir)

POWYS
County Council

Highways & Transportation
UC 139
Rhiw Constable

Drawn by	Checked	Date
Scale	Revision	
1/50000		

THE COUNTY OF POWYS

(COUNTY UNCLASSIFIED ROAD NO.139:RHIW CONSTABLE, BLACK MOUNTAINS)

(PROHIBITION OF DRIVING) ORDER 1990

NOTICE IS HEREBY GIVEN that on the 22nd November 1990, the County Council of Powys made the above-named Order under Sections 1(1) and (2) and 2(1) and (2) of the Road Traffic Regulation Act 1984.

Subject to the exceptions specified below, the Order makes it unlawful to drive any vehicle with four or more wheels in that length of the County Unclassified Road no 139 known as Rhiw Constable in the Communities of Talgarth and the Vale of Grwyney which extends from its junction with the C80 and the unclassified 141 roads near Penrhos, Llanelieu, for a distance of approximately 3.4 miles (5.5 kilometres) in a generally south-easterly direction to a point adjacent to the dam wall of Grwyne Fawr Reservoir.

Exceptions in the Order permit affected vehicles to proceed in the length of road concerned if they are being used:

- (i) in pursuance of statutory duties or
- (ii) by the owners of land abutting the road or by persons with the consent of the said owners for the purposes of gaining access to or egress from adjoining land.

The Order will come into operation on Monday, 3rd December, 1990.

A copy of the Order and a map showing the length of road concerned may be examined during office hours at:

Powys County Hall, Llandrindod Wells
and
The Post Office, Talgarth

If you wish to question the validity of the Order or of any provision contained in it on the grounds that it is not within the powers conferred by the Road Traffic Regulation Act 1984, or on the grounds that any requirement of that Act or of any Instrument made under it has not been complied with in relation to the Order, you may within six weeks from the 3rd December, 1990, apply to the High Court for this purpose.

N M ROLT
County Solicitor

Powys County Hall
Llandrindod Wells
Powys LD1 5LG

POWYS COUNTY COUNCIL
HIGHWAYS & TRANSPORTATION DEPARTMENT

Proposed Prohibition of Access for any vehicle
Uc.139 Rhiw Constable

Statement of Reasons

The Prohibition of Access is required to prevent indiscriminate use of this unmade road by numerous four-wheel drive vehicles which are causing damage to the highway and thus making access by landowners difficult and dangerous.